MELANIA MUUNGANI N.O
(In her capacity as the Executrix Dative of the Estate late Tichafa Jerison Muungani, DR No. 1983/20)
and
FRANK SINODO N.O
(Being cited in his representative capacity as Executor Dative of the Estate Late Ephraim Maposa)
and
FRANK SINODO
and
THE MASTER OF THE HIGH COURT N.O
and
CITY OF HARARE
and
THE SHERIFF OF THE HIGH COURT OF ZIMBABWE N.O

HIGH COURT OF ZIMBABWE
MAMBARA J
HARARE 9 March 2026

Opposed Application

T James, for the applicant
Z Dumbura, for the 1st and 2nd respondents

MAMBARA J:

Introduction

[1] This is an opposed application for registration of title to immovable property in terms of section 3 of the Titles Registration and Derelict Lands Act [Chapter 20:20] ("the Titles Act"), read with acquisitive prescription under section 4 of the Prescription Act [*Chapter* 8:11] ("the Prescription Act").

Section 3 of the Titles Registration and Derelict Lands Act [*Chapter* 20:20] provides:

> "Any person who, by prescription or by virtue of any contract or transaction or in any other manner, has acquired the just and lawful right to the ownership of any immovable property in Zimbabwe registered in the name of any other person and cannot procure the registration of such property in his name in the land register, the register of occupation stands or the register of claims, as the case may be, in the manner and according to the forms for that purpose by law provided, by reason of the death, mental incapacity, insolvency or absence from Zimbabwe of the person in whose name such property stands registered as aforesaid or of any person or persons through or from whom such right has been mediately or immediately

> derived or owing to any other cause may apply to the High Court to order the registration of the title to such property in his name in the land register, the register of occupation stands or the register of claims, as the case may be, of Zimbabwe."

Section 4 of the Prescription Act [*Chapter* 8:11] provides:

> "Subject to this Part and Part V, a person shall by prescription become the owner of a thing which he has possessed openly and as if he were the owner thereof for—
> (a) an uninterrupted period of thirty years; or
> (b) a period which, together with any periods for which such thing was so possessed by his predecessors in title, constitutes an uninterrupted period of thirty years."

[2] The dispute concerns Stand 2588 Glen View, Harare, also described in the record as No. 30 Crescent, Glen View (the "property"). Two deceased estates and their representatives encountered one another at the point where administrative estate processes met long-standing occupation and development of the property by the Muungani family.

[3] The applicant is Melania Muungani, cited and acting in her capacity as Executrix Dative of the Estate Late Tichafa Jerison Muungani (DR 1983/20). The first respondent is Frank Sinodo N.O, cited as Executor Dative of the Estate Late Ephraim Maposa. The second respondent is Frank Sinodo in his personal capacity. The third respondent is the Master of the High Court N.O. The fourth respondent is the City of Harare. The fifth respondent is the Sheriff of the High Court N.O.

[4] The matter was contested on the papers; given the presence of material factual disputes and the opposition entered, the matter was directed to trial pursuant to section 10 of the Titles Act, and the parties subsequently produced a statement of agreed facts delimiting the triable issues.

[5] Section 10 of the Titles Registration and Derelict Lands Act [Chapter 20:20] provides:

> "If any person appears to show cause against any order so granted as in section nine mentioned, the Court may, if it sees fit to do so, and without the issue of any summons, require any issue of fact to be tried upon pleadings or may make such order as will in the most speedy and inexpensive manner determine the matter in controversy."

Factual Background

[6] The central factual premise is common cause: the Muungani family has resided at Stand 2588, 30 Crescent, Glenview 1 since 1983 to date. The property was at one time held under the name of the late Ephraim Maposa, and was later transferred into the second respondent's name through estate-related processes.

[7] It is also common cause that the applicant's appointing instrument as executrix dative of Estate Late Tichafa Jerison Muungani was issued on 23 March 2021, and that the late Muungani died intestate on 21 September 2007.
[8] It is further common cause that the late Ephraim Maposa died on 15 February 2017, and that an executor for his estate was appointed on 13 March 2018.

[9] The parties agree that the Estate Late Ephraim Maposa has been wound up and closed, on the footing that its only property was transferred to the first or second respondent.
[10] It is common cause that there exists a pending eviction case under HCH3710/21, awaiting allocation of a trial date.
[11] On the evidence led, the applicant's witnesses testified to long, open and exclusive occupation, development of the property into a substantial dwelling, and rates payments associated with the property. The second respondent's evidence accepted, substantially, the longevity of the Muungani occupation, but disputed the legal consequences contended for and raised objections based on prescription-law mechanics, including section 6 of the Prescription Act, the pending eviction process, and the legal effect of the winding-up of the Maposa estate.
[12] The application seeks orders, in substance, declaring that the property forms part of the Muungani estate by acquisitive prescription; setting aside any inclusion/allocation/cession/award of the property under the Maposa estate; directing corrective steps by the Master; directing cession/registration by the City of Harare; authorising the Sheriff to execute documents in default; and costs.
Issues for determination
[13] The issues for determination were expressly delimited by the parties. They are:
[14] First, whether acquisitive prescription has run to completion, in light of section 6 of the Prescription Act, the deaths of the two deceased persons and the dates of appointment of their executors, and the existence of the eviction proceedings issued in 2021.
[15] Second, whether the claim for transfer/registration of the property is itself prescribed in terms of the Prescription Act.
[16] Third, whether a party can sue (or obtain effective relief concerning) an estate that has been wound up and closed.
[17] Fourth, and as a corollary, because the matter is brought under section 3 of the Titles Act and was referred to trial under section 10, what constitutes the proper form of final relief once

opposition is adjudicated, particularly having regard to section 13 of the Titles Act (effect of registration under the Act).

Governing law

[18] Section 3 of the Titles Act provides a statutory mechanism for a person who has "acquired the just and lawful right to the ownership" of immovable property (including rights in "stands in townships held under certificate of occupation") and who cannot procure ordinary registration because of death, incapacity, insolvency, absence, or "any other cause," to apply to the High Court for an order directing registration in the appropriate register.

[19] Sections 8–10 of the Titles Act establish the procedural architecture: the court may (if it considers it expedient) grant a provisional order calling upon all persons with claims to appear; if cause is shown (i.e., opposition is entered), the court may require issues of fact to be tried on pleadings or may make such order as will, "in the most speedy and inexpensive manner," determine the controversy.

Section 8 provides:

> "Upon considering any application for registration of title, the High Court or judge may, if such Court or judge considers it expedient to do so, grant an order setting forth the description of the property mentioned in such petition and calling upon all persons having or pretending to have any right or title to such property to appear and establish their claims to the same upon some day to be named in the rule, or be forever barred therefrom, and may direct the mode of service or publication of such order."

Section 9 provides:

> "Upon considering any such application for registration of title, the High Court or judge may, and upon the return of any such rule granted as aforesaid, and no cause being shown to the contrary, the High Court may order the Registrar to register the property mentioned in such order as the property of the person therein named, subject to such terms and conditions as may be therein mentioned."

Section 10 provides (set out above at paragraph [4]):

[20] Section 13 of the Titles Act regulates the legal effect of any registration made pursuant to an order under that Act: the registration vests title and right in the beneficiary, but the title/right remain vulnerable (or invulnerable) to the same grounds of annulment, limitation or affectation as would have applied had the property been "regularly transferred" through ordinary conveyancing channels.

Section 13 provides:

> "Every registration of immovable property made in favour of any person in pursuance of any order granted under this Act shall have the effect of vesting such person with a title and right to such property which shall and shall not, respectively, be liable to be annulled, set aside, limited and affected on every ground and by reason of every and any cause, matter or thing by

> reason of which the title and right of such person to such property would or would not have been liable to be annulled, set aside, limited or affected if such property had been regularly transferred to and in favour of such person and to and in favour successively of every person through or from whom his right was derived or acquired."

[21] Under section 4 of the Prescription Act, a person becomes owner by prescription of a thing possessed "openly and as if he were the owner" for an uninterrupted period of thirty years, including by adding periods of possession by predecessors in title.

[22] The Prescription Act further regulates (i) involuntary loss of possession, (ii) postponement of completion of prescription under defined "impediments" (section 6), and (iii) judicial interruption of acquisitive prescription by service of process on the possessor whereby ownership is claimed, subject to lapse of interruption if the claimant does not successfully prosecute to final judgment.

[23] Although Zimbabwean law is rooted in Roman-Dutch principle, comparative jurisprudence remains a useful interpretive aid where consistent with local statutory text and policy. In South African law (also Roman-Dutch in foundation), the Supreme Court of Appeal reiterates that the possession relevant to acquisitive prescription is civil possession (*corpus* plus *animus domini*), and must be *nec vi, nec clam, nec precario* translating to "neither by force, nor by stealth, nor precariously."

[24] In adverse possession doctrine, the House of Lords explained that possession is proved by factual possession (sufficient physical control) and intention to possess (*animus possidendi*), not necessarily an "intention to own."

The House of Lords formulation referred to is found in J A Pye (Oxford) Ltd and Others v Graham and Another [2002] UKHL 30; [2003] 1 AC 419 (HL) (4 July 2002):

> "To be pedantic the problem could be avoided by saying there are two elements necessary for legal possession:a sufficient degree of physical custody and control ("factual possession");
> an intention to exercise such custody and control on one's own behalf and for one's own benefit ("intention to possess")."

The same judgment further states that what is required is "not an intention to own or even an intention to acquire ownership but an intention to possess".

[25] In the United States, courts similarly treat continuity and tacking pragmatically, focusing on whether the dominion exercised is that which an owner of like property would ordinarily exercise, and allowing tacking where sufficient privity connects successive occupiers.

Analysis and findings

[26] I deal, first, with the propriety and juridical character of this application as a Titles Act matter intertwined with acquisitive prescription.

[27] The Titles Act is not, itself, an "engine" for creating ownership out of nothing. It is, rather, a remedial registration statute: it assumes the existence of a "just and lawful right to ownership" acquired "by prescription," "by virtue of any contract or transaction," or "in any other manner," and then provides a court-supervised mechanism to translate that right into the relevant public register where ordinary formal routes are blocked by death, absence, or comparable impediments.

[28] Zimbabwean practice confirms this remedial character. In Jarvis Mudzengerere v Estate Late Jackson Jekera & Ors , HH 244-10, the court recognised section 3 as a vehicle to achieve registry correction/cession into the applicant's name where ordinary conveyancing was frustrated by death and procedural difficulty, and crafted effective relief authorising the Deputy Sheriff and directing the relevant municipality to record the cession.

The operative portion illustrating that remedial relief appears in *Mudzengerere* v *Jekera & Ors supra* as follows:

> "3. The Deputy Sheriff, Chitungwiza be and is hereby authorized and required, in the place and stead of the Late Jackson Jekera, to sign all documents and perform all deeds necessary to effect cession of the right, title and interest in Stand 13451 Unit N, Seke to the Hezekia Muzopa.
> 4. The Chitungwiza Municipality be and is hereby ordered to facilitate and to record such cession in its books."

[29] It follows that, once opposition is entered and triable disputes of fact arise, section 10 empowers the court to move away from the paper-based, largely administrative "rule calling upon interested persons" model and to determine the real controversy through trial directions that promote speed and cost-efficiency. The court is not confined to a formalistic two-stage ritual if what is required is a definitive adjudication of competing claims to the same property.

[30] In this matter, the referral to trial under section 10 was, in my view, entirely orthodox. The contested question was not merely one of missing signatures or administrative delay; it was whether the applicant (through the Muungani estate) had, by operation of acquisitive prescription, become owner despite the Maposa estate's later administrative treatment of the property and despite subsequent transfer into the second respondent's name.

[31] I turn then to the core: whether acquisitive prescription ran to completion.

[32] The statutory elements under section 4 of the Prescription Act are: possession (including via predecessors), openness, possession "as if owner," and an uninterrupted period of thirty years.

[33] The concept "as if owner" is not satisfied by every kind of occupation. Civil possession requires both physical detention (corpus) and an owner-like intention (*animus domini*), and the possession must be *nec vi, nec clam, nec precario.*

[34] I accept, on the totality of the evidence and the admitted facts, that the Muungani family's occupation was open, visible, and long-standing. There was no suggestion of secrecy. On the contrary, the occupation was the ordinary kind associated with a family home. That satisfies the "*nec clam*" dimension described in the comparative Roman-Dutch formulation, and it aligns with the statutory requirement of open possession.

[35] I also accept that the occupation was peaceable in the relevant sense: not held through forceful seizure or maintained by violence, but through long, unchallenged residence and development.

[36] The real contest is whether the Muungani occupation was "as if owner," or whether it was, at its root, derivative, precarious, or otherwise inconsistent with civil possession.

[37] The jurisprudence cautions that mere long occupation, even for thirty years, does not automatically yield prescriptive title if the occupation is by virtue of a legal relationship recognising another's ownership (for example, a lease).

[38] That caution is sound. It protects both the integrity of ownership and the rule-of-law expectation that the law should not allow a plainly subordinate possessor (such as a lessee) to transmute a derivative right into ownership merely by the passage of time.

[39] But the caution must not be over-extended. In adverse possession doctrine across the Commonwealth, the emphasis is on factual control and an intention to possess to the exclusion of the world at large, not a formalistic inquiry into whether the possessor always and explicitly disavowed the paper owner's title.

[40] In the present matter, the factual matrix points strongly toward owner-like possession: long residence, development, and the ordinary incidents of home-occupation. The evidence does not support a finding that the Muunganis occupied as tenants, licensees, or as persons whose presence was revocable at the mere will of the registered holder.

[41] It is significant that the agreed facts place the commencement of occupation in 1983, with uninterrupted residence to date. That is a period exceeding forty years—well beyond the thirty-year statutory threshold.

[42] Subject therefore to interruption or postponement under the Prescription Act, the prima facie result would be that ownership by prescription vested once the thirty-year period matured.

[43] This brings me to section 6 of the Prescription Act (postponement of completion) and section 7 (judicial interruption).

Section 6 (as applicable) provides:

> "(1) If—
>
> (a) the person against whom the prescription is running is a minor or is insane or is a woman whose separate property is controlled by her husband by virtue of his marital power or is a person under curatorship or is a person whose behaviour or physical or mental condition justifies his being placed under curatorship or who is prevented by superior force or any enactment or order of court from interrupting the running of prescription in terms of section seven; or
>
> (b) the person in favour of whom the prescription is running is outside Zimbabwe or is married to the person against whom the prescription is running or is a member of the governing body of a juristic person against whom the prescription is running; or
>
> (c) the person against whom or in favour of whom the prescription is running is deceased and an executor of the estate in question has not yet been appointed;
>
> and the period of prescription would, but for this subsection, be completed before or on, or within three years after, the date on which the relevant impediment referred to in paragraph (a), (b) or (c) has ceased to exist, the period of prescription shall not be completed before the expiration of the period of three years which follows that date."

Section 7 provides:

> "(1) In this section—
> 'process' includes—
> (a) a petition; or
> (b) a notice of motion; or
> (c) a rule nisi; or
> (d) any document whereby legal proceedings are commenced.
> (2) The running of prescription shall, subject to subsection (3), be interrupted by the service on the possessor of the thing in question of any process whereby any person claims ownership in that thing.
> (3) Any interruption in terms of subsection (2) shall lapse, and the running of prescription shall not be deemed to have been interrupted, if the person claiming ownership in the thing in question—
> (a) does not successfully prosecute his claim under the process in question to final judgment; or

> (b) successfully prosecutes his claim under the process in question to final judgment, but abandons the judgment or the judgment is set aside.
> (4) If the running of prescription is interrupted in terms of subsection (2), a new period of prescription shall commence to run, if at all, only on the date on which final judgment is given."

[44] Section 6 does not declare that prescription "stops running" in the absolute sense whenever an impediment exists. It is crafted as a rule postponing completion where, because of a defined impediment, the period would otherwise complete too early (i.e., before or within three years after the impediment ceases). Its function is to prevent completion from occurring before the affected party has had a minimum window after the impediment ends.

[45] In this case, reliance was placed on section 6(1)(c), namely that "the person against whom or in favour of whom the prescription is running is deceased and an executor … has not yet been appointed."

[46] The respondents urge that because the late Muungani died in 2007 and an executor for his estate was appointed only in 2021, completion could not have occurred in 2013; and, accordingly, the 2021 eviction process interrupted prescription before completion. That submission rests on two propositions: (i) that the death of a predecessor possessor triggers section 6(1)(c) against the successor possessor; and (ii) that "the person in favour" of prescription, for section 6 purposes, remained the deceased until an executor was appointed.

[47] I am unable to accept those propositions as a correct construction of the Act read as a whole.

[48] First, section 4 expressly contemplates that a person may complete the prescriptive period by adding "any periods … possessed by his predecessors in title." This is a statutory recognition of tacking.

[49] Once tacking is recognised, the "person in favour of whom prescription is running" at the point of completion cannot sensibly be frozen as the original predecessor who no longer possesses. Prescription, in practical and juridical terms, runs in favour of the current civil possessor(s), who may add predecessor periods, and who will become owner at completion.

[50] Second, section 6(1)(c) is triggered when "the person … is deceased" and no executor has yet been appointed. A predecessor may be deceased, but if successors have continued open and owner-like possession, then the person aiming to complete prescription is not the deceased predecessor; it is the successor possessor(s), who are alive and in possession. It would distort section 4's tacking mechanism if section 6(1)(c) were read to postpone completion merely because a predecessor in title is dead, even while successors openly possess for decades.

[51] Third, the statutory focus in section 7 (judicial interruption) is on process served on "the possessor," reflecting that prescription runs in favour of that possessor and is interrupted by an owner's assertion of ownership through service of process.

[52] On that footing, by the time thirty years had elapsed from 1983, the "possessor" for section 7 purposes was the Muungani family occupying the property. They are the relevant persons for completion analysis.

[53] I therefore find that acquisitive prescription matured upon the expiration of thirty uninterrupted years from 1983, namely by about 2013, and that section 6(1)(c) does not postpone that completion merely because executorship was formally granted to the applicant only in 2021.

[54] If I am wrong in that construction, a further difficulty confronts the respondents' argument. Section 6 postpones completion, but section 7 provides that judicial interruption lapses if the claimant does not successfully prosecute to final judgment. The present record indicates that the eviction matter HCH3710/21 is still pending and not determined to finality. Whether, in the precise circumstances of that pending matter, interruption has occurred and whether it may lapse are matters that would require a close process-based inquiry. Given my construction of section 6 and my finding on maturation by 2013, it is unnecessary—and would be imprudent—to determine, in the abstract, the interruption consequences of that pending file.

[55] I next address the submission that the applicant's "claim for transfer" is prescribed.

[56] It is essential to distinguish (a) a contractual claim for specific performance (transfer/cession pursuant to a sale), from (b) a claim to recognition and registration of ownership that has already vested by operation of acquisitive prescription.

[57] The former, being a personal claim to performance, may be vulnerable to extinctive prescription depending on the applicable prescriptive period for "debts" and when the debt became due. The latter is of a different juridical character: it is an assertion of a real right (ownership) said to have vested by statute after the lapse of a defined period of possession.

[58] Comparative authority is helpful here. In Absa Bank Ltd v Keet, the Supreme Court of Appeal of South Africa held that a rei vindicatio (a claim founded on ownership) is not a "debt" for purposes of extinctive prescription periods applicable to debts.

In *Absa Bank Limited* v *Keet* (817/2013) [2015] ZASCA 81; 2015 (4) SA 474 (SCA); [2015] 4 All SA 1 (SCA) (28 May 2015), the court stated:

> "[20] In my view, there is merit in the argument that a vindicatory claim, because it is a claim based on ownership of a thing, cannot be described as a debt as envisaged by the Prescription Act."

It further held:

> "[25] In the circumstances, the view that the vindicatory action is a 'debt' as contemplated by the Prescription Act which prescribes after three years is, in my opinion, contrary to the scheme of the Act."

[59] The reasoning is persuasive. Where the applicant's case is that ownership vested by acquisitive prescription, the "claim" is not to enforce a debt but to have the court recognise the operation of the statute and to direct registry alignment under the Titles Act.

[60] The Titles Act exists precisely because registry alignment may be practically impossible through ordinary mechanisms. It would be self-defeating to treat the very act of seeking registry alignment under section 3 as a "debt claim" that perishes in three years, in circumstances where the applicant's case is that ownership was acquired by a thirty-year statutory mechanism and the impediment to ordinary registration is death or similar cause contemplated by the Titles Act.

[61] I find therefore that the applicant's claim, properly characterised as one for recognition and registration of ownership vested by acquisitive prescription, is not defeated by extinctive prescription arguments directed at personal claims for transfer.

[62] I turn to the "wound-up estate" objection.

[63] The respondents submit that because the Maposa estate has been wound up and closed, and the property has been distributed/transferred, the applicant cannot sue that estate (or cannot obtain effective relief without first re-opening it).

[64] The point cannot be dismissed out of hand. Estate administration is a structured statutory process; and where final liquidation and distribution accounts have been confirmed and acted upon, undoing distributions often requires formal re-opening or review processes in appropriate circumstances.

[65] However, this case is not best understood as a conventional attack on an estate distribution per se. It is a contest of title: the applicant says that, by 2013, the property no longer belonged (in substance) to the Maposa estate because ownership had vested by acquisitive prescription in the Muungani side; thus, subsequent administrative treatment of

the property as Maposa estate property could not confer substantive entitlement if, in law, that entitlement had already been lost by prescription.

[66] In that context, the fact that the property has since been transferred into the second respondent's name reinforces, rather than defeats, the suitability of Titles Act proceedings: section 3 is directed precisely at property "registered in the name of any other person," where ordinary transfer is blocked by death or "any other cause," and the court is empowered to order registration to reflect the true right.

[67] The wound-up status of the Maposa estate does not create a jurisdictional bar to determining whether the second respondent's registered holding is vulnerable to being displaced by an earlier vesting of ownership through acquisitive prescription and a consequent section 3 registration order. The court's task is not to conduct a general administration review, but to determine the title contest and direct the appropriate registry consequences.

[68] I therefore find that the applicant is not non-suited merely because the Maposa estate has been wound up and closed.

[69] I come then to the remedial question: what is the proper order, particularly once the matter has gone to trial under section 10 and bearing in mind section 13 of the Titles Act.

[70] Section 10 empowers the court, after objection is raised, to determine the controversy by trial (with or without pleadings) and to do so speedily and inexpensively. Once that adjudication is completed, the court must issue an order that is both (i) faithful to the Titles Act structure, and (ii) practically capable of implementation by the relevant registering authority.

[71] The order is not a mere "declaration in the air." The Titles Act contemplates that the Registrar (or, in relation to occupation stands, the appropriate official/authority) must register the property in the beneficiary's name pursuant to the court's order.

[72] Section 13's significance is this: the registration ordered under the Titles Act has the same substantive effect as a regular transfer would have had, and is vulnerable (or invulnerable) to the same kinds of challenges that would have existed along the chain had regular transfers occurred. This guards against the Titles Act being used to launder defective rights into indefeasible title.

[73] In this matter, I have found that the applicant's side acquired ownership by operation of section 4 of the Prescription Act through long, open, uninterrupted possession as if owner for

a period exceeding thirty years. That constitutes the "just and lawful right to ownership" required to unlock the Titles Act remedy.

[74] The appropriate final order must therefore: (a) declare the vesting by prescription; (b) neutralise conflicting administrative treatment in the Maposa estate record insofar as necessary to give effect to the declarator; (c) direct the City of Harare, as the relevant registering authority in the occupation-stand context, to effect cession/registration into the applicant estate's name; and (d) provide an implementation mechanism in case of non-cooperation, including authorisation of the Sheriff to sign in default. Such relief is consistent with the remedial practice illustrated in HH 244-10.

[75] Costs should follow the event. There is no sufficient basis on this record to depart from that general rule.

Disposition

In the result, it is ordered that:

1. The immovable property known as Stand 2588 Glen View, Harare (also described as No. 30 Crescent, Glen View 3), being an occupation stand under the City of Harare, be and is hereby declared to form part of the Estate Late Tichafa Jerison Muungani (DR 1983/20) by virtue of acquisitive prescription in terms of section 4 of the Prescription Act [Chapter 8:11].
2. Any inclusion, allocation, cession, award, or treatment of the said property as property of the Estate Late Ephraim Maposa (DR 428/18) in a manner inconsistent with paragraph (1) above be and is hereby set aside, to the extent of that inconsistency.
3. The third respondent shall amend and/or correct the relevant estate record DR No. 428/18 to reflect that Stand 2588 Glen View, Harare (No. 30 Crescent) does not form part of the Estate Late Ephraim Maposa, and shall issue all requisite directions to give effect to this judgment.
4. The fourth respondent shall, within fourteen (14) days of service of this order, effect cession and/or registration of the said property into the name of the Estate Late Tichafa Jerison Muungani (DR 1983/20) in its records and registers, and shall do all things necessary to give effect to such cession/registration pursuant to section 3 of the Titles Registration and Derelict Lands Act [*Chapter* 20:20].

5. In the event of default by any respondent in complying with any step necessary to implement this order, the fifth respondent, or his lawful deputy, be and is hereby authorised and directed to sign all documents and take all steps necessary to give effect to this order in the place and stead of the defaulting party.
6. The first and second respondents, jointly and severally, the one paying the other to be absolved, shall pay the applicant's costs of suit on the ordinary scale.

7. The order in paragraphs (1)-(6) above is granted under the Titles Act as finally determined after trial in terms of section 10, and shall have the effect stipulated in section 13 of that Act.

MAMBARA J…….

Sithole & James, applicant's legal practitioners
Gijima, Gashirai Gatawa, 1st and 2nd respondents' legal practitioners